

OBSERVATIONS BY M. NYHOLM.

[*Translation.*]

While accepting the result arrived at in the Advisory Opinion, it seems possible or preferable to look differently at certain parts of the reasoning and in particular the interpretation given to Articles 6 and 9 of the Statute of 1921. This interpretation, which affects the various points in the reasoning, appears not to be of a character that permits the attainment of clear and definite results.

The Council's question rightly puts in the forefront the following problem: What is the law in force for the Danube? The river has in fact been subject to successive regulations which leave some doubt as to the law definitely established at the present time.

Historically speaking, it is to be noted that in 1856, after the Crimean War, the European Commission was set up, to operate from the mouths to *Isaktcha*. That is the first stage.

Then in 1878, after the Russo-Turkish War, the field of activities of the Commission was, by the Treaty of Berlin, extended to *Galatz*.

This second stage was followed by a third, denoted by the Treaty of London of 1883 (continuation of the Treaty of Berlin). At London the territorial jurisdiction was extended as far as *Braila*.

The fourth and, so far, last decision is found in the Treaty of Versailles of 1919. This Treaty fixed no exact point for the territorial jurisdiction of the European Commission,—neither Galatz nor Braila. On the contrary it provided that the jurisdiction should be established and exercised *as in the past*.

The Treaty in fact provided that the powers of the European Commission should be the same as formerly, from *both* a territorial and material point of view. As regards *territorial* jurisdiction, it is provided that from the point where the jurisdiction of the European Commission ceases, the Danube shall be placed under the administration of an international commission, which was a new creation of the Treaty of Versailles. It is

to be seen from the text of the Treaty that the two Commissions completed one another without any interval. As regards the *nature* of the jurisdiction, it is provided that "the European Commission reassumes the powers it possessed before the war". Finally the Treaty provided for the drawing up of a Statute; this latter, which was signed on July 23rd, 1921, constitutes, up to the present time, the last act relating to the Danube.

From the facts above mentioned it results that the law in force at the present time consists of the Treaty, as fundamental basis, and the Statute which emanates therefrom.

As regards treaties prior to the Treaty of Versailles, there seems to be no doubt that they have been abolished. In fact, at the moment when the Treaty of Versailles was drafted, the position was an entirely new one, all the past having been cleared away. The Great War had interrupted the work of the European Commission, the archives of which had been scattered in different countries, and no regular working of that body had been in existence. Secondly, the situation of the riparian States had to a great extent changed. The new frontiers involved a modification of the rights of riparians. Finally, the complete political alteration gave a new general basis to the fluvial régime of Europe. Further, the legal situation was changed: new mandate-givers, namely, all the Allied or Associated Powers, had come on the scene to settle the question of the Danube. This latter, being connected with the general regulation of international river transport in Europe, had acquired an international character more extensive than in the past. The decisions previously taken, between 1856 and 1883, by a more limited circle of Powers, had no longer any place beside the new decisions emanating from the group formed by almost the totality of nations, amongst whom were included, moreover, to a great extent, the Powers having participated in previous treaties. The consequence of this situation is that the Treaties of Berlin and London no longer counted, and that only the Treaty of Versailles could be invoked. It must however be pointed out that if prior treaties—which in principle have disappeared—can recover any importance, this is only from the fact that the Treaty of Versailles refers to the situation existing in the past. It is

thus *indirectly* that reference might possibly be made to previous treaty provisions.

If we look in particular to Article 1 of the Treaty of London of 1883, which extended the jurisdiction of the European Commission as far as Braila, and thus apparently solved the question at present in dispute, we note that this Treaty, by itself, no longer exists. The sole basis is now the Treaty of Versailles.

Beside this latter Treaty there is its emanation, the Statute of 1921. This Statute however, in relation to the Treaty, can only be regarded as a regulation compared with a law. The mandate given by the Allied and Associated Powers to a limited number of Powers, assembled in conference at Paris, does not contain an authorization to depart from the principles and rules contained in the Treaty. Although the Conference had the power to amplify these rules, any decision taken by it in contradiction of the Treaty would be null, and might so be regarded by each of the Powers signatory of the Treaty of Versailles.

It is therefore the Statute—and, in case of doubt, principally the Treaty of Versailles—which is the basis when a reply is to be given to the question in dispute, namely, whether the European Commission possesses any jurisdiction on the Galatz-Braila sector.

The rules governing jurisdiction are found in Articles 5 and 6 of the Statute. These articles appear to reproduce faithfully the text of the Treaty. But the Court's Opinion gives to Article 6 an interpretation which does not seem admissible. This interpretation overturns, in fact, all the principles of the Treaty, by declaring that Article 9, combined with Article 6, fixes Braila as terminus, whereas the Treaty, for the fixing of limits, refers to the past without any precise determination.

In interpreting the Statute, in order to avoid confusion, it is particularly important to distinguish clearly between the *territorial* competence (Article 6) and the *nature* of the competence (Article 5) of the Commission.

The first question put by the Council is whether the European Commission has any jurisdiction in the Galatz-Braila sector. What is asked is thus a fixing of the territorial jurisdiction (Article 6). The second question is, what is that

competence; it therefore involves a fixing of the *nature* of the jurisdiction (Article 5).

It may be well to quote these two articles, in order that they may be kept in mind.

Territorial jurisdiction: Article 6.

“La compétence de la Commission européenne s’étend, dans les mêmes conditions que par le passé et sans aucune modification à ses limites actuelles, sur le Danube maritime, c’est-à-dire depuis les embouchures du fleuve jusqu’au point où commence la compétence de la Commission internationale ¹.”

Nature of the jurisdiction: Article 5.

“La Commission européenne exerce les pouvoirs qu’elle avait avant la guerre. Il n’est rien changé aux droits, attributions et immunités qu’elle tient des traités, conventions, actes et arrangements internationaux relatifs au Danube et à ses embouchures ².”

As regards territorial jurisdiction, it is therefore to be noted that no limit is fixed in Article 6. It may be recalled that there was no question of fixing a limit at any precise kilometre-stone between Galatz and Braila. There was never any question of other limits than *either* Galatz *or* Braila. Article 6 therefore merely confirms that the Treaty (and the Statute) did not wish to fix *either* Galatz *or* Braila, but that they left the situation as it existed in practice theretofore. The limit of the European Commission’s jurisdiction *was therefore an unknown point, and could only be fixed after it had been determined by an enquiry into the effective exercise of jurisdiction in the past.*

¹ [Translation.] “The authority of the European Commission extends, under the same conditions as before, and without any modification of its existing limits, over the maritime Danube, that is to say, from the mouths of the river to the point where the authority of the International Commission commences.”

² [Translation.] “The European Commission retains the powers which it possessed before the war. No alteration is made in the rights, prerogatives and privileges which it possesses in virtue of the treaties, conventions, international acts and agreements relative to the Danube and its mouths.”

In order to understand this situation, which may appear curious, account must be taken of historical development. In 1856, Isaktcha was fixed as limit, in 1878 Galatz, in 1883 Braila.

Taken literally, under the decision of 1883, the question appears simple. But it must be remembered that beside these treaties there came into play a series of acts of navigation elaborated successively, based on the treaties and intended to ensure their execution by provisions of detail. These regulations, so to speak, lived their own life, being sometimes not in harmony with the text of the treaties.

Thus the Navigation Regulations of March 19th, 1881, may be regarded as a sequel to the Treaty of Berlin, which fixed Galatz as limit. Nevertheless, the Regulations, in numerous articles on various subjects, provide for a service of the European Commission that shall go as far as Braila, thus including that sector. Similarly, after the Treaty of London which had extended jurisdiction as far as Braila, the Navigation Regulations which followed continued to indicate Galatz as limit, with a definite service extending to Braila. The same is again the case in the last Navigation Regulations of 1923, subsequent to the Treaty of Versailles and the Statute.

Having regard to the above situation, it may be possible to understand what happened at the Peace Conference before the drafting of the article of the Versailles Treaty concerning the Danube, and also the situation at the Paris Conference, at the time when paragraph 6 was to be drafted.

The fixing of "Braila" in the Treaty of London in 1883 had produced no effect. All had remained as hitherto. Since the system applied in fact had worked well, it was most probably desired to make that situation permanent. It was not, however, intended to produce a further change between Galatz and Braila, by expressly coming back to the term "Galatz", and for that reason the limit finally adopted was only "the past".

The intention was therefore to perpetuate the system which had given satisfaction for more than half a century, without fixing any definite limit. Against this decision, which is quite clearly expressed *both* in the Treaty of Versailles *and* in the Statute, it does not seem possible to admit that

Article 9 of the Statute definitely fixed Braila as terminus. This interpretation is based on two facts: (1) the European Commission and the International Commission complete one another and their spheres of activity touch; (2) Article 9 of the Statute provides that "the authority of the International Commission extends over the Danube between Ulm and Braila".

The conclusion arising from a cursory interpretation is that the International Commission ends at Braila and that therefore the European Commission goes as far as Braila.

This interpretation is in conflict with Article 6 and with the historical basis of that article.

It is beyond dispute that that article fixes neither Braila nor Galatz, but refers to a past which must be elucidated by an enquiry. Article 6 introduces a factor so far unknown, an x , and Article 9 of the same Statute cannot therefore fix Braila. A law cannot set up a rule in one article and, changing its mind, a contrary rule in the next article. Any such interpretation must be ill-founded. Article 6 provides that the jurisdiction shall extend "under the same conditions as before and without any modification of its *existing limits*". It is possible that a consideration of the previous situation may indicate Galatz as limit. In such a case it is impossible that Article 6 should fix Galatz and Article 9 Braila.

Further, the point of view developed in the Court's Opinion does not seem to be in conformity with the historical development leading up to the text of Article 6. When that article was framed, in accordance with the Treaty of Versailles, the moment had come to decide whether or not it was desired to maintain the fixing of the limit at Braila, as in the previous Treaty. A text was adopted which was the expression of a *de facto situation* which it was desired to prolong. The Statute, in Article 6, omitted to fix Braila as limit, and it cannot therefore reasonably do the contrary in Article 9.

Further, it is to be seen that, if the territorial jurisdiction was fixed at Braila by the Statute, there was no further need to deal with the main question in dispute. All doubt had

disappeared; but it is seen that none the less the question remains unsolved, as is shown by the ever growing mass of documents.

Finally, any attempt to eliminate the words "under the same conditions as before, and without any modification of its existing limits" remains fruitless. The Court's Opinion appears to understand them as indicating different degrees of jurisdiction; but it thereby enters into the other subject, namely, the nature of the jurisdiction (Article 5). Article 6 relates to territorial jurisdiction, and provides that no modification shall be made in the existing limits. A limit must be definitely fixed, and the contention which the Opinion appears to uphold as regards *partial* jurisdiction relates to the *nature* of the jurisdiction; it therefore has nothing to do with the question of limits. There remain to be explained the words "and Braila" in Article 9, which form the basis of the interpretation in the Court's Opinion, which says that the jurisdiction of the International Commission extends between Ulm and *Braila*. In this connection, it is to be noted that Article 9 is placed under Heading III, entitled "Fluvial Danube", and only relates to that Heading, whereas Article 6 is under Heading II, "Maritime Danube". It is said in the Statute that the two Commissions touch one another, but it is nowhere said that the jurisdiction of the International Commission cannot go beyond Braila towards the mouth. The argument of the Opinion that Braila is henceforth definitely fixed as limit leads to results which are hardly acceptable.

The past history of Article 6 must at a certain moment be elucidated. If, for instance, investigations led to the conclusion that the European Commission's jurisdiction definitely stopped in the past at Galatz, there would be a gap between Galatz and Braila. The new situation involved by the setting up of the International Commission has for result that, in the case indicated, the jurisdiction of that latter Commission would *automatically* extend to Galatz, and a partial jurisdiction over the maritime Danube (Heading II) would be added to its jurisdiction over the fluvial Danube (Heading III).

It is also to be noted that Article 9 does not speak of jurisdiction *as far as Braila*, but merely says that the juris-

diction extends over the Danube between Ulm and Braila. The explanation of that clause is in reality to be found in the fact that, under Heading III, which relates solely to the fluvial Danube, it was desired to indicate the western, upstream limit, which was fixed at Ulm.

Finally, it is to be remarked that against the above interpretation of Article 6 it is not possible to refer to Article 3 of the Statute: this latter article provides that the European Commission and International Commission shall extend respectively over the maritime and fluvial Danubes, which, according to the admitted expression, touch at Braila. In such a case the article would be contrary to the Treaty of Versailles; but it should moreover be observed that in the article is found the express reservation: jurisdiction "as defined" in Chapters II and III. The text of Article 6 and its historical basis show therefore that it was conceived in the hope of establishing a rule enabling the practice which had been peacefully followed in the past to be continued, but that hope was doomed to disappointment. Two insignificant incidents led to the raising of the question of limits, and the time arrived when, inevitably, it became necessary to bring to an end the situation of friendly cooperation which had hitherto obtained. But the desire of a single one of the Parties made it imperative that a solution should be arrived at. This could only be done by holding an enquiry. This reason amongst others led to the appointment of the Special Committee and characterized the work of that Committee. The investigations of the Committee and in general contents of the dossier have shown that in the past the activities of the European Commission did in fact extend as far as Braila; the reply to the first question therefore is that—as concerns the territorial extent of the powers—the European Commission also exercised its functions in that sector.

As regards the nature of its activities (second part of the Council's principal question: nature of the powers, Article 5), the investigations of the Committee have also made it possible to reach the general conclusion that the European Commission exercised powers below Galatz which may be divided into four categories: (1) maintenance of the navigable channel, (2) pilotage, (3) regulation of navigation, (4) jurisdictional powers.

That the European Commission exercised in the Galatz-Braila sector the first three categories of powers is sufficiently proved by the documents before the Court. As regards the fourth category, the Committee has satisfactorily established that in fact the European Commission did exercise jurisdiction in some cases in the sector. In regard to this point, of the enquiries mentioned by the Committee the only ones which could be taken into account are those carried out by the Committee itself. Again, the conclusion of the Committee upon the decisions submitted to it may be accepted as proof of the exercise of *jurisdiction* by the European Commission. It follows that, throughout the disputed sector, the European Commission exercised the same powers as below Galatz; the investigation of the records of the past undertaken by the Committee and rendered necessary by Articles 6 and 5 therefore leads to the conclusion that the point where the jurisdictions of the two Commissions meet is Braila.

Roumania cannot regard this conclusion as a diminution of her sovereign rights; for the basis of this conclusion is not a kind of acquisitive prescription in favour of the European Commission, even supposing that prescription of such a kind were recognized by international law. On the contrary, the provisions of the Treaty of Versailles (and of the Statute) which make it necessary to fix the limit by ascertaining the facts of the past, are simply the outcome of the voluntary adherence of Roumania, together with all the other Allied and Associated Powers, to the Treaty of Versailles. And again, the interest which Roumania would have to maintain its sovereign powers in the sector, if the European Commission's authority stopped at Galatz, is no longer the same as would appear to have been imagined at the beginning of the dispute. For, in consequence of the creation of the International Commission, the sector would not come under the full exercise of Roumanian sovereignty; that sovereignty would be limited by the authority of the International Commission, which practically speaking is not far short of that of the European Commission.

(Signed) D. G. NYHOLM.